

25NWCV03818 25NWCV03818

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-06-25

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Case Number: 25NWCV03818 Hearing Date: June 25, 2026 Dept: C

RAMIREZ vs PHILLIPS

CASE NO.: 25NWCV03818

HEARING: 6/25/26 @ 9:30 AM

#10

TENTATIVE ORDER

Plaintiff ULISES FIGUEROA RAMIREZ's Motion to

Quash Deposition Subpoena for Production of PLAINTIFF'S INSURANCE, MEDICAL

& BILLING RECORDS and Sanctions is GRANTED in part. Sanctions are awarded to Plaintiff in the amount of \$360.00.

Moving Party to give NOTICE.

Plaintiff ULISES FIGUEROA RAMIREZ (Plaintiff)

moves for an order quashing Defendant KEVIN PHILLIPS's (Defendant) subpoena to Mercury

Insurance Company pursuant to Code of Civil Procedure § 1987.1 et seq. Plaintiff

also seeks monetary sanctions, reimbursement of costs, and attorney's fees in

the amount of \$7,260.00 against Defendant KEVIN PHILLIPS and/or his counsel of

record pursuant to Code Civ. Proc. 1987.2 et seq., and 2023.010 et seq.

The parties agree to limit the subpoena to

Mercury Insurance Company to the body parts Plaintiff placed at issue in this litigation,

namely Plaintiff's neck, left shoulder, left arm, lower back, and left knee.

However, the issue remains that Plaintiff filed the instant Motion given the subject subpoena had not been withdrawn and re-issued with the limitations. Plaintiff requests sanctions for the filing of the Motion. Defendant requests sanctions against Plaintiff on the grounds that Plaintiff abused the discovery process by only agreeing to take down the motion in exchange for \$2,860.00 to compensate Plaintiff's Counsel for the time and costs incurred in filing the Motion.

Background

This

action arises from a motor vehicle collision that occurred on or about January 29, 2024, on the eastbound I-105 near the Bellflower exit. The parties were traveling in the carpool lane when Defendant rear ended Plaintiff's vehicle. (See Declaration of Jaime A. Portillo ("Portillo Decl."), ¶ 3.) Plaintiff filed his complaint on October 28, 2025. (Portillo Decl. ¶ 3.) (Complaint, PLD-PI-001 (2), p. 1.)

Plaintiff

alleges multiple injuries, including but not limited to his neck, left shoulder, left arm, left knee, and lower back. (Portillo Decl. ¶ 4; Exh A.) Plaintiff has alleged these are ongoing issues and has consulted and treated with experts. (Portillo Decl. ¶ 5; See Exh. A.) Plaintiff has stated that he will require future medical care and surgery as a result of the incident in question. (Portillo Decl. ¶ 6; See Exh. A.)

Legal

Standard

"If

a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy

of the person.” (Code Civ. Proc., § 1987.1, subd. (a).)

Discussion

On March 2, 2026, Defendant issued a subpoena to Mercury Insurance Company seeking the following:

“Any and all documents and records pertaining to the insurance and claim file of Ulises Figueroa Ramirez, including, but not limited to, all payments, policy information, listing of providers, correspondence, all log notes, declaration of coverage, EOB's (explanation of benefits), Health Insurance Claim Forms and Claims Details, medical records, color photographs pertaining to Ulises Figueroa Ramirez, born on June 26, 1983, with SS# UNK, For the past 10 years. Claim No: CAPA02449242 Policy No. CAAP0000160314Dol: 10/26/24.” (Mazza Decl., ¶3, Ex. 1, Attachment 3.)

Plaintiff argues that the documents are irrelevant and impermissibly overbroad. Plaintiff argues the subpoenas are overboard and call for the disclosure of irrelevant information over which Plaintiff has a constitutional right to privacy. The subpoena would necessarily encompass records entirely unrelated to the claims asserted in this litigation, including private medical, insurance, and financial information protected by Plaintiff's constitutional right to privacy. Defendant's assertion that all records maintained by Mercury Insurance may somehow bear on causation or damages is speculative. (In re Lifschutz (1970) 2 Cal.3d 435; Tylo v. Superior Court (1997) 55 Cal.App.4th 1379, 1387.)

In opposition, Defendant argues that Plaintiff only provided three days as part of their “meet and confer” timeline, along with their opposition, in which Defense counsel was out of office and was not able to respond in a timely manner. Upon responding shortly after, Defense counsel, in good faith, offered to limit the subpoenas to the areas of the body at issue, including but not limited to the neck, left shoulder, left arm, left knee, and lower back, in order to remedy Plaintiff's concerns, avoid the Motion in question, and preserve the Court's valuable time. (Portillo Decl. ¶ 14; See Exh. D.) Rather than remove the Motion off calendar, avoid additional costs, and save the Court's time, Plaintiff elected to keep the Motion, seek sanctions, and forced Defendant to file this Opposition accordingly.

The Court finds that Defendant's subpoena

requests are overbroad. As to the medical records, “disclosure can be compelled only with respect to those conditions the patient-litigant has “disclose[d] by bringing an action in which they are in issue...Disclosure cannot be compelled with respect to other aspects of the patient-litigant’s condition even though they may, “in some sense, be ‘relevant’ to the substantive issues of litigation. The patient thus is not obligated to sacrifice all privacy to seek redress for a specific mental or emotional injury; the scope of the inquiry permitted depends upon the nature of the injuries which the patient-litigant himself has brought before the court.” (Tylo v. Sup. Ct. (1997) 55 Cal. App. 4th 1379, 1387-88 [citing Britt v. Superior Court (1978) 20 Cal.3d 844, 863-64.].)

The subpoenas shall be withdrawn and reissued with the agreed-upon limiting language. (Portillo Decl., Exh. D; Mazza Decl., ¶¶ 3-4.) The Court notes the scope of the subpoenas was agreed to be narrowed to the body parts Plaintiff has put forth as at issue from the Incident in this case, involving Plaintiff’s neck, left shoulder, left arm, lower back, and left knee. (Reply, p. 6: 10-11; Mazza Decl., ¶¶ 3-4.)

Sanctions

The Court may, in its discretion award the amount of the reasonable expenses incurred in making or opposing a motion to quash, including reasonable attorney’s fees, if the court finds that the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements was oppressive. (Code Civ. Proc., § 1987.2.)

Plaintiff seeks sanctions against Defendant in the amount of \$7,260.00 based upon Defendant’s failure to withdraw the subpoena as originally written. Counsel for Plaintiff served objections to Defendant’s subpoena on March 17, 2026. Although not required to do so, counsel served a meet and confer letter requesting that the subpoena be withdrawn and reissued with proposed limiting language by no later than noon on March 20, 2026. (Mazza Decl., ¶5.) As of March 25, the subpoena had not been withdrawn and reissued. (Id., ¶6.)

Counsel for Defendant states he was unable to respond to Plaintiff’s meet and confer letter until March 27, 2026 due to the extremely short timeline to respond and being out of town. (Portillo Decl.,

¶11.) Defendant's March 27 email indicated a willingness to narrow the subpoena to the body parts at issue so as to avoid additional costs. (Id., ¶13, Ex. D.) However, Plaintiff would only withdraw the motion upon payment of \$2,860.00 to compensate Plaintiff's counsel for the time and cost incurred in preparing the motion. (Ibid.) Defendant did not agree to Plaintiff's demands, so the document production noticed for March 31, 2026 did not go forward.

The Court finds that reduced sanctions are warranted because the amount sought by Plaintiff is excessive. Moreover, Defense counsel acted with substantial justification because counsel was willing to limit the scope of the subpoena in a good faith attempt to resolve the matter without judicial intervention. Here, monetary sanctions compensate Plaintiff for reasonable expenses incurred in drafting a simple and straightforward motion. Accordingly, the Court imposes sanctions in the amount of \$360.00, inclusive of costs, against Defendant and Defense counsel, jointly and severally, payable within 30 days.

Accordingly, Plaintiff's motion is GRANTED in part. The subpoena shall be withdrawn and reissued with the agreed-upon limiting language within 10 days.